

Document

EXHIBIT 10.37

The Goldman Sachs Group, Inc.

One-Time; Year-End; Short-Term RSU Award

This Award Agreement, together with The Goldman Sachs Amended and Restated Stock Incentive Plan (2021) (the "Plan"), governs your _____ award of Short-Term RSUs (your "Award"). You should read carefully this entire document (including its "Appendix" and "Appendices"), the Award Statement and the Signature Card (together, the "Award Agreement"), as well as the other documentation presented to you in connection with acceptance of your Award (collectively, "Award Documentation").

Acceptance

1.

You Must Decide Whether to Accept Your Award

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To be eligible for your Award, you must by the Acceptance Deadline: (a) open and activate an Account; (b) accept any Additional Terms presented to you as part of the Award Documentation; and (c) execute (including by electronic means) the accompanying Signature Card in accordance with its instructions. By executing the Signature Card, you confirm your agreement to all

of the terms of the Award Agreement (including the Award Statement and the Signature Card), as well as any Additional Terms.

Documents that Govern Your Award; Definitions

2.

The Plan

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Your Award is granted under the Plan, and the Plan's terms apply to, and are a part of, this Award Agreement. The Plan and its Prospectus are included with the Award Documentation.

3.

Your Award Statement

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The accompanying Award Statement contains the number of Short-Term RSUs awarded to you and some of your Award's specific terms. For example, it specifies the Delivery Date.

4.

Definitions

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Unless otherwise defined herein, including in the Definitions Appendix or any other Appendix, capitalized terms have the meanings provided in the Plan.

Vesting of Your RSUs

5.

Vesting

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All of your Short-Term RSUs are Vested. When an RSU is Vested, it means only

that your continued active Employment is not required for delivery of that portion of RSU Shares.

Vesting does not mean you have a non-forfeitable right to the Vested portion of your Award. The terms of this Award Agreement (including conditions to delivery) continue to apply to Vested Short-Term RSUs, and you can still forfeit Vested Short-Term RSUs and any RSU Shares

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Delivery of Your RSU Shares

6.

Delivery

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Reasonably promptly (but no more than 30 Business Days) after each Delivery Date identified on your

Award Statement, RSU Shares (less applicable withholding as described in Paragraph 11(b)) will be delivered (by book entry credit to your Account) in respect of the amount of Outstanding Short-Term RSUs listed next to that date. The Committee may select multiple dates within the 30-Business-Day period following the Delivery Date to deliver RSU Shares in respect of all or a portion of the Short-Term RSUs with the same Delivery Date listed on the Award Statement, and all such dates will be treated as a single Delivery Date for purposes of this Award. Until such delivery, you have only the rights of a general unsecured creditor, and no rights as a shareholder of GS Inc. Without limiting the Committee's authority under Section 1.3.2(h) of the Plan, the Firm may accelerate any Delivery Date by up to 30 days.

Dividends

7.

Dividend Equivalent Rights and Dividends

Each Short-Term RSU includes a Dividend Equivalent Right, which entitles you to receive an amount (less applicable withholding), at or after the time of distribution of any regular cash dividend paid by GS Inc. in respect of a share of Common Stock, equal to any regular cash dividend payment that would have been made in respect of an RSU Share underlying your Outstanding Short-Term RSUs for any record date that occurs on or after the Date of Grant.

Forfeiture of Your Award

8.

How You May Forfeit Your Award

This Paragraph 8 sets forth the events that result in forfeiture of up to all of your Short-Term RSUs and may require repayment to the Firm of up to all other amounts previously delivered or paid to you under your Award in accordance with Paragraph 9. More than one event may apply, and in no case will the occurrence of one event limit the forfeiture and repayment obligations as a result of the occurrence of any other event. Paragraph 10 (relating to certain circumstances under which delivery may be accelerated) provides for exceptions to one or more provisions of this Paragraph 8.

(a)

Short-Term RSUs Forfeited Upon Certain Events

If any of the following occurs, your rights to all of your Outstanding Short-Term RSUs will terminate, and no RSU Shares will be delivered in respect of such Short-Term RSUs, as may be further described below;

(i)

You Failed to Consider Risk

You Failed to Consider Risk during ____.

(ii)

Your Conduct Constitutes Cause

Any event that constitutes Cause has occurred before the Delivery Date.

(iii)

You Breach an Obligation to the Firm

The Committee determines that, before the Delivery Date, you Breached an Obligation to the Firm.

(iv)

You Do Not Provide Timely Certifications or Comply with Your Certifications

You fail to certify to GS Inc. that you have complied with all of the terms of the Plan and this Award Agreement as required by Paragraph 11(d), or the Committee determines that you have failed to comply with a term of the Plan or this Award Agreement to which you have certified compliance.

(v)

You Do Not Follow Dispute Resolution Procedures

You attempt to have any dispute, controversy or claim under the Plan or this Award Agreement resolved in any manner that is not provided for by Paragraph 14 or Section 3.17 of the Plan, or you attempt to arbitrate a dispute, controversy or claim without first having exhausted your internal administrative remedies in accordance with Paragraph 11(c).

(vi)

You Bring an Action that Results in a Determination that Any Award Agreement Term Is Invalid

. As a result of any action brought by you, it is determined that any term of this Award Agreement is invalid.

(vii)

You Receive Compensation in Respect of Your Award from Another Employer

. Your Employment terminates for any reason or you otherwise are no longer actively Employed with the Firm and another entity grants you cash, equity or other property (whether vested or unvested) to replace, substitute for or otherwise in respect of any Outstanding Short-Term RSUs; provided

, however

, that your rights will only be terminated in respect of the Short-Term RSUs that are replaced, substituted for or otherwise considered by such other entity in making its grant.

(b)

Additional Forfeiture and Repayment Conditions for Material Risk Takers

. If at any point in

_____, Since the Firm identified you as a Material Risk Taker (MRT) in _____; then the

EU and UK Material Risk Taker Appendix

and/or the

GSBE Material Risk Taker Appendix

(as

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applicable to you, the MRT Appendix) supplements this Paragraph 8. The MRT Appendix sets forth additional events that (i) result in forfeiture of up to all of your Short-Term RSUs and (ii) may require repayment to the Firm of up to all amounts previously delivered or paid to you under your Award in accordance with Paragraph 9. Your MRT classification, as defined in the MRT Appendix, was communicated to you separately. If you are unsure of whether the Firm identified you as an MRT, or which classification(s) apply, you must contact HCM prior to accepting this Award. The Firm's records with respect to such classification(s) will be controlling as to whether and which MRT Appendix applies to your Award. The MRT classifications with their corresponding MRT Appendix are as follows;

MRT Classification

MRT Appendix

EU MRT, GSAMI MRT, GSAMI Senior Management and/or UK MRT

EU and UK Material Risk Taker Appendix

GSBE MRT and GSBE Senior Management

GSBE Material Risk Taker Appendix

GSBE MRT or GSBE Senior Management

and

any combination of EU MRT, GSAMI MRT, GSAMI Senior Management or UK MRT

GSBE Material Risk Taker Appendix

and

EU and UK Material Risk Taker Appendix;

(c)

Actions Pending Forfeiture

. In connection with any investigation as to whether any of the events that would result in forfeiture under the Plan or this Paragraph 8 or the MRT Appendix have occurred, the Firm reserves the right to (i) suspend payments under Dividend Equivalent Rights or delivery of RSU Shares; (ii) deliver any RSU Shares, payments under Dividend Equivalent Rights or dividends into an escrow account in accordance with Paragraph 11(e)(iii); or (iii) apply

Transfer Restrictions to any RSU Shares.

Repayment of Your Award

9.

When You May Be Required to Repay Your Award

If the Committee determines that any term of this Award was not satisfied, you will be required, immediately upon demand therefor, to repay to the Firm the following:

(a)

Any RSU Shares for which the terms (including the terms for delivery) of the related Short-Term RSUs were not satisfied, in accordance with Section 2.6.3 of the Plan.

(b)

Any payments under Dividend Equivalent Rights for which the terms were not satisfied (including any such payments made in respect of Short-Term RSUs that are forfeited or RSU Shares that are cancelled or required to be repaid), in accordance with Section 2.8.3 of the Plan.

(c)

Any dividends paid in respect of any RSU Shares that are cancelled or required to be repaid.

(d)

Any amount applied to satisfy tax withholding or other obligations with respect to any Short-Term RSUs, RSU Shares, dividend payments and payments under Dividend Equivalent Rights that are forfeited or required to be repaid.

Exceptions to the Delivery Date

10.

Accelerated Delivery in the Event of a Qualifying Termination After a Change in Control; Conflicted Employment; or Death

In the event of your Qualifying Termination After a Change in Control; Conflicted Employment; or death, each as described below, your Outstanding Short-Term RSUs will be treated as described in this Paragraph 10, and, except as set forth in Paragraph 10(a), all other terms of this Award Agreement, including the other forfeiture and repayment events in Paragraphs 8 and 9 and the MRT Appendix, continue to apply.

(a)

You Have a Qualifying Termination After a Change in Control

If your Employment terminates when you meet the requirements of a Qualifying Termination After a Change in Control, the

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RSU Shares underlying your Outstanding Short-Term RSUs will be delivered. In addition, the forfeiture events in Paragraph 8 (except the MRT Appendix) will not apply to your Award.

(b)

You Are Determined to Have Accepted Conflicted Employment

Generally

(i)

To the extent consistent with applicable law, regulation and regulatory guidance, if your Employment terminates solely because you resign to accept Conflicted Employment or if, following your termination of Employment, you notify the Firm that you are accepting Conflicted Employment, RSU Shares will be delivered in respect of your Outstanding Short-Term RSUs (including in the form of cash as described in Paragraph 11(e)(ii)) as soon as practicable after the Committee has received satisfactory documentation relating to your Conflicted Employment.

(ii)

You May Have to Take Other Steps to Address Conflicts of Interest

The Committee retains the authority to exercise its rights under the Award Agreement or the Plan

(including Section 1.3.2 of the Plan) to take or require you to take other steps it determines in its sole discretion to be necessary or appropriate to cure an actual or perceived conflict of interest (which may include a determination that the accelerated delivery described in Paragraph 10(b)(i) will not apply because such actions are not necessary or appropriate to cure an actual or perceived conflict of interest).]

(c)

Death

. If you die, the RSU Shares underlying your Outstanding Short-Term RSUs will be delivered to your Account as soon as practicable after the date of death and receipt of any documentation as may be requested by the Committee or a SIP Administrator.

Other Terms And Conditions of Your Award

11.

Additional Terms, Conditions and Consents

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(a)

You Will Be Required to Accept Additional Terms

. In addition to the terms of the Award Agreement, the Award Documentation includes other contractual terms that you must accept as a condition of the Award (the “Additional Terms”). By accepting the Award and executing the Signature Card, you agree to any such Additional Terms applicable to you as set forth in the Award Documentation, which will include but are not limited to the following.

(i)

Notice Period Policy

. You must agree to abide by the terms, as applicable to you, of the Policy on Notice Periods for Recipients of Year-End Equity-Based Awards and Other Deferred Compensation (the “Notice Period Policy”).

(ii)

Agreement Regarding Arbitration of Employment-Related Matters

. You must agree to the Agreement Regarding Arbitration of Employment-Related Matters, which imposes obligations in addition to those contained in Paragraph 14.

(iii)

APAC Restrictive Covenants

. If you are employed by the Firm in the Asia-Pacific Region (

e.g.

, Australia, the People’s Republic of China, the Hong Kong Special Administrative Region, India, Indonesia, Japan, the Republic of Korea, New Zealand, Singapore, Taiwan), you must agree to the APAC Restrictive Covenants Agreement.

(iv)

Role-, Business- or Division-Specific Agreements

. If applicable to you, you must accept Additional Terms related to your specific role, business unit or division as set forth in the Award Documentation.

(b)

You Must Satisfy Applicable Tax Withholding Requirements

. Delivery of RSU Shares is conditioned on your satisfaction of any applicable withholding taxes in accordance with Section 3.2 of the Plan, which includes the Firm deducting or withholding amounts from any payment or distribution to you. In addition, to the extent permitted by applicable law, the Firm, in its sole discretion, may require you to provide amounts equal to all or a portion of any Federal, state, local, foreign or other tax obligations

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imposed on you or the Firm in connection with the grant or delivery of this Award by requiring you to choose between remitting the amount (i) in cash (or through payroll deduction or otherwise) or (ii) in the form of proceeds from the Firm’s executing a sale of RSU Shares delivered to you under this Award. In no event, however, does this Paragraph 11(b) give you any discretion to determine or affect

the timing of the delivery of RSU Shares or the timing of payment of tax obligations.

(c)

You Must Comply with Applicable Deadlines and Procedures to Appeal

. If you disagree with a determination made by the Committee, the SIP Administrators or any of their delegates or designees relating to the Plan or the Award Agreement and you wish to appeal such determination, you must submit a written request to the Committee for review within 180 days after the determination at issue. You must exhaust your internal administrative remedies (

i.e.

, submit your appeal and wait for resolution of that appeal) before seeking to resolve a dispute, controversy or claim through arbitration pursuant to Paragraph 14 and Section 3.17 of the Plan.

(d)

You May Be Required to Certify Compliance with Award Terms; You Are Responsible for Providing Updated Address and Contact Information After Your Departure from the Firm

. If your Employment terminates while you continue to hold Short-Term RSUs, the Firm may require you to provide certifications of your compliance with all of the terms of the Plan and this Award Agreement. You understand and agree that (i) your contact information as reflected in the Firm's personnel records at the time any certification is requested will be deemed current; (ii) it is your responsibility to inform HCM of any changes to your contact information to ensure timely receipt of the certification materials, regardless of whether your contact information is provided to another part of the Firm; and (iii) you are responsible for contacting the Firm to obtain such certification materials if not received. Your failure to return properly completed certification materials by the specified deadline (including because you did not provide HCM with updated contact information) will result in the forfeiture of all of your Short-Term RSUs and subject previously delivered amounts to repayment under Paragraph 8(a)(iv).

(e)

You Agree to Other Terms, Conditions and Consents

. By accepting this Award you understand and agree that;

(i)

Amounts May Be Rounded to Avoid Fractional RSU Shares

. RSU Shares that become deliverable may be rounded to avoid fractional RSU Shares.

(ii)

Firm May Deliver Cash or Other Property Instead of RSU Shares

. In accordance with Section 1.3.2(i) of the Plan, in the sole discretion of the Committee, in lieu of all or any portion of the RSU Shares, the Firm may deliver cash, other securities, other awards under the Plan or other property, and all references in this Award Agreement to deliveries of RSU Shares will include such deliveries of cash, other securities, other awards under the Plan or other property.

(iii)

Firm May Deliver Your Award into an Escrow Account

. The Firm may establish and maintain an escrow account on such terms (which may include your executing any documents related to, and your paying for any costs associated with, such account) as it may deem necessary or appropriate, and the delivery of RSU Shares, and any payment of cash (including dividends and payments under Dividend Equivalent Rights) or other property, may initially be made into and held in that escrow account until such time as the Committee has received such documentation as it may have requested or until the Committee has determined that any other conditions or restrictions on delivery of RSU Shares, cash or other property required by this Award Agreement have been satisfied.

(iv)

Firm May Affix Legends and Place Stop Orders on RSU Shares

. GS Inc. may affix to Certificates representing RSU Shares any legend that the Committee determines to be necessary or advisable (including to reflect any restrictions to which you may be subject under the Additional Terms, a separate agreement or any Firm policy applicable to you). GS Inc. may advise the transfer agent to place a stop order against any legended RSU Shares.

(v)

You Agree to Certain Consents as a Condition to the Award

. You have expressly consented to all of the items listed in Section 3.3.3(d) of the Plan, including the

Firm's supplying

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to any third-party recordkeeper of the Plan or other person such personal information of yours as the Committee deems advisable to administer the Plan, and you agree to provide any additional consents that the Committee determines to be necessary or advisable.

(vi)

You Are Subject to the Firm's Policies, Rules and Procedures

. You are subject to the Firm's policies in effect from time to time concerning trading in RSU Shares and hedging or pledging RSU Shares and equity-based compensation or other awards (including, without limitation, the "Firmwide Policy with Respect to Personal Transactions Involving GS Securities and GS Equity Awards" or any successor policies), and confidential or proprietary information, and you will effect sales of RSU Shares in accordance with such rules and procedures as may be adopted from time to time (which may include, without limitation, restrictions relating to the timing of sale requests, the manner in which sales are executed, pricing method, consolidation or aggregation of orders and volume limits determined by the Firm).

(vii)

You Are Responsible for Costs Associated with Your Award

. You will be responsible for all brokerage costs and other fees or expenses associated with your Short-Term RSUs, including those related to the sale of RSU Shares.

(viii)

You Will Be Deemed to Represent Your Compliance with All the Terms of Your Award if You Accept Delivery of, or Sell, RSU Shares

. You will be deemed to have represented and certified that you have complied with all of the terms of the Plan and this Award Agreement when RSU Shares are delivered to you and you receive payment in respect of Dividend Equivalent Rights.

(ix)

You Agree that Covered Persons Will Not Have Liability

. In addition to and without limiting the generality of the provisions of Section 1.3.5 of the Plan, neither the Firm nor any Covered Person will have any liability to you or any other person for any action taken or omitted in respect of this or any other Award.

12.

Non-transferability

. Except as otherwise may be provided by the Committee, the limitations set forth in Section 3.5 of the Plan will apply to this Award. Any purported sale, exchange, transfer, assignment, pledge, hypothecation, fractionalization, hedge or other disposition (including through the use of any cash-settled instrument), whether voluntary or involuntary, in violation of the provisions of this Paragraph 12 or Section 3.5 of the Plan will be void.

13.

Right of Offset

. Except as provided in Paragraph 16(h), the obligation to deliver RSU Shares or to pay dividends or payments under Dividend Equivalent Rights under this Award Agreement is subject to Section 3.4 of the Plan, which provides for the Firm's right to offset against such obligation any outstanding amounts you owe to the Firm and any amounts the Committee deems appropriate pursuant to any tax equalization policy or agreement.

Arbitration, Choice of Forum and Governing Law

14.

Arbitration; Choice of Forum

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(a)

By accepting this award, you are indicating that you understand and agree that the arbitration and choice of forum provisions set forth in Section 3.17 of the Plan will apply to this Award to the fullest

extent permitted by applicable law. These provisions, which are expressly incorporated herein by reference, provide among other things that any dispute, controversy or claim between the Firm and you arising out of or relating to or concerning the Plan or this Award Agreement will be finally settled by arbitration, pursuant to the terms more fully set forth in Section 3.17 of the Plan; provided that nothing herein shall preclude you from filing a charge with or participating in any investigation or proceeding conducted by any governmental authority, including but not limited to the SEC, the Equal Employment Opportunity Commission and a state or local human rights agency, as well as law enforcement.

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(b)

Nothing in the Plan or this Award Agreement includes an agreement to arbitrate claims on a collective, class or representative basis. To the fullest extent permitted by applicable law, no arbitrator will have the authority to consider class, collective or representative claims, to order consolidation or to join different claimants or grant relief other than on an individual basis to the individual claimant involved.

(c)

Notwithstanding any applicable forum rules to the contrary, to the extent there is a question of enforceability of the Plan or this Award Agreement arising from a challenge to the arbitrator's jurisdiction or to the arbitrability of a claim, it will be decided by a court and not an arbitrator.

(d)

Prior to filing any arbitration in accordance with Paragraph 14(a), you must first exhaust your internal administrative remedies in accordance with Paragraph 11(c), which includes awaiting the Committee's final determination of any such appeal. To the fullest extent permitted by applicable law, no arbitrator will have the authority to consider any dispute, controversy or claim as to which you have not first exhausted your internal administrative remedies in accordance with Paragraph 11(c).

(e)

The Federal Arbitration Act governs interpretation and enforcement of all arbitration provisions under the Plan and this Award Agreement, and all arbitration proceedings thereunder.

(f)

Nothing in the Plan or this Award Agreement creates a substantive right to bring a claim under U.S. Federal, state, or local employment laws.

(g)

By accepting your Award, you irrevocably appoint each General Counsel of GS Inc., or any person whom the General Counsel of GS Inc. designates, as your agent for service of process in connection with any suit, action or proceeding arising out of or relating to or concerning the Plan or any Award which is not arbitrated pursuant to the provisions of Section 3.17.1 of the Plan, who shall promptly advise you of any such service of process.

(h)

As a condition of your Award, you also must accept the terms of the Agreement Regarding Arbitration of Employment-Related Matters, which is included among the Additional Terms described in Paragraph 11(a) and sets forth obligations independent of this Paragraph 14. For the avoidance of doubt, the obligation to exhaust your internal remedies described in Paragraph 11(c) and Paragraph 14(d) only applies to disputes, controversies or claims relating to the Plan or the Award Agreement.

15.

Governing Law

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This Award will be governed by and construed in accordance with the laws of the State of New York, without regard to principles of conflict of laws.

Certain Tax Provisions

16.

Compliance of Award Agreement and Plan with Section 409A

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The provisions of this Paragraph 16 apply to you only if you are a U.S. taxpayer.

(a)

This Award Agreement and the Plan provisions that apply to this Award are intended and will be construed to comply with Section 409A (including the requirements applicable to, or the conditions for exemption from treatment as, 409A Deferred Compensation), whether by reason of short-term deferral treatment or other exceptions or provisions. The Committee will have full authority to give effect to this intent. To the extent necessary to give effect to this intent, in the case of any conflict or potential inconsistency between the provisions of the Plan (including Sections 1.3.2 and 2.1 thereof) and this Award Agreement, the provisions of this Award Agreement will govern, and in the case of any conflict or potential inconsistency between this Paragraph 16 and the other provisions of this Award Agreement, this Paragraph 16 will govern.

(b)

Delivery of RSU Shares will not be delayed beyond the date on which all applicable conditions or restrictions on delivery of RSU Shares required by this Award Agreement (including those specified in Paragraphs 6, 10(c) and 11 and the consents and other items specified in Section 3.3 of the Plan) are satisfied. To the extent that any portion of this Award is intended to satisfy the requirements for

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short-term deferral treatment under Section 409A, delivery for such portion will occur by the March 15 coinciding with the last day of the applicable "short-term deferral" period described in Reg. 1.409A-1(b)(4) in order for the delivery of RSU Shares to be within the short-term deferral exception unless, in order to permit all applicable conditions or restrictions on delivery to be satisfied, the Committee elects, pursuant to Reg. 1.409A-1(b)(4)(i)(D) or otherwise as may be permitted in accordance with Section 409A, to delay delivery of RSU Shares to a later date within the same calendar year or to such later date as may be permitted under Section 409A, including Reg. 1.409A-3(d). For the avoidance of doubt, if the Award includes a "series of installment payments" as described in Reg. 1.409A-2(b)(2)(iii), your right to the series of installment payments will be treated as a right to a series of separate payments and not as a right to a single payment.

(c)

Notwithstanding the provisions of Paragraph 11(e) and Section 1.3.2(i) of the Plan, to the extent necessary to comply with Section 409A, any securities, other Awards or other property that the Firm may deliver in respect of your Short-Term RSUs will not have the effect of deferring delivery or payment, income inclusion, or a substantial risk of forfeiture, beyond the date on which such delivery, payment or inclusion would occur or such risk of forfeiture would lapse, with respect to the RSU Shares that would otherwise have been deliverable (unless the Committee elects a later date for this purpose pursuant to Reg. 1.409A-1(b)(4)(i)(D) or otherwise as may be permitted under Section 409A, including and to the extent applicable, the subsequent election provisions of Section 409A(a)(4)(C) of the Code and Reg. 1.409A-2(b)).

(d)

Notwithstanding the timing provisions of Paragraph 10(c), the delivery of RSU Shares referred to therein will be made after the date of death and not later than the end of the calendar year following the calendar year that includes the date of death (or on such later date as may be permitted under Section 409A).

(e)

The timing of delivery or payment pursuant to Paragraph 10(a) will occur on the earlier of (i) the Delivery Date or (ii) a date that is within the calendar year in which the termination of Employment occurs; provided

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however

, that if you are a "specified employee" (as defined by the Firm in accordance with Section 409A(a)(2)(i)(B) of the Code), delivery will occur on the earlier of the Delivery Date or (to the extent required to avoid the imposition of additional tax under Section 409A) the date that is six months after your termination of Employment (or, if the latter date is not during a Window Period, the first trading day of the next Window Period). For purposes of Paragraph 10(a), references in this Award

